

Content licence

Draft for review by each party's own solicitor. This is not legal advice and it is not signed.

Date: [●] 2026

Parties

1. **TMG Yachts Pty Ltd** ABN 73 606 621 238, ACN 606 621 238, of The Quays Marina, 1856 Pittwater Road, Church Point NSW 2105 (**Licensor**).
2. **[Full legal name of the Juvin8 entity]** ABN [●], of **[address]** (**Producer**), trading as Juvin8.ai.
3. **Cintra Pty Ltd** ABN 17 106 425 736, ACN 106 425 736, of New South Wales 2105, trading as AllSAIL (registered business name ALLSAIL) (**End User**).

Background

A. The Licensor publishes boating films on the YouTube channel TMG Yachts, including the films in Schedule 1. Joe Fox appears in those films. The films were made for the Licensor's own audience. A YouTube upload is not, by itself, a licence for someone else to build a paid or commercial course around them.

B. The Producer builds e-learning modules. The End User wants to use two of those modules to train people who sail with AllSAIL on Pittwater. The modules are named in Schedule 2.

C. The Licensor is willing to licence the films for that use only, on the terms below.

Agreement

1. What is licensed

1.1 The Licensor grants the Producer a non-exclusive licence to include the Films in the Modules, and to license each finished Module to the End User, so that the End User may show the Films to Authorised Viewers.

1.2 **Authorised Viewers** are the End User's employees, contractors, charter crew, and paying or booked customers of AllSAIL, and no one else.

1.3 The licence covers Australia only. It may be used for training that happens on Pittwater or online for those same Authorised Viewers. It is not a licence to offer the Modules to the public, or to any other sailing school, charter company, or LMS customer.

1.4 The licence is personal. The Producer may sublicense only to the End User, and only for the Modules. The End User may not sublicense, assign, or lend the Modules. Neither of them may let a third party white-label the Films.

2. How the films may be shown

2.1 The Films must stay on YouTube. They are shown only through the official YouTube player, embedded from the URLs in Schedule 1 (including the youtube-nocookie player). Playback starts only after the viewer presses play on a poster that names TMG Yachts.

2.2 The Producer and the End User must not download, rip, trim, dub, subtitle, re-upload, or store a copy of a Film, and must not put a video file inside a SCORM package, a USB, or an offline player. A SCORM package may describe the lesson and record a quiz. It must not contain the picture or sound of a Film.

2.3 The Films are shown whole. No cut-down, no overlay on the picture, and no advertisement inside the player.

2.4 YouTube's terms still apply to every playback. This agreement does not force YouTube to keep a Film online. If YouTube removes a Film or disables embedding, the licence for that Film pauses until the Licensor supplies another official embed, or ends for that Film if the Licensor does not do so within 30 days.

3. Credit and what must not be said

3.1 Every screen that offers a Film, and the first screen of each Module, must say, in substance: "Film by TMG Yachts. Instructor: Joe Fox. Used with permission. The course text and quiz are by Juvin8.ai for AllSAIL."

3.2 The Producer and the End User must not say, and must not let the Module say, that TMG Yachts wrote the course, marked the quiz, certified the learner, or approved the boat for sea. A pass mark in a Module is not a TMG qualification and not a substitute for the skipper's own judgment.

3.3 The Licensor's name and the Films must not be used to sell any product other than the Modules to Authorised Viewers.

4. The modules

4.1 Copyright in the Films stays with the Licensor (or its licensors, including any rights of people who appear in them). Copyright in the original course text, diagrams, quiz, and calculator stays with the Producer, and is licensed by the Producer to the End User under their own agreement. Nothing in that other agreement can be wider than this one, so far as the Films are concerned.

4.2 The Modules may explain and question the methods shown in the Films, including high-water scope, low-water swing, and a stern-to-wind approach. That explanation must stay fair to what is actually said on screen. It must not be presented as a new TMG manual.

5. Fee

5.1 The Producer pays the Licensor the fee in Schedule 3, plus GST, within 14 days of a tax invoice. The End User is not billed by the Licensor unless the Producer does not pay.

5.2 The fee is for this licence only. It is not a payment for boat sales, charter, or tuition by TMG Yachts.

6. Term

6.1 This licence starts on the date the last party signs and runs for the term in Schedule 3, unless it ends sooner.

6.2 A party may end it by notice if another party materially breaches and does not fix the breach within 14 days of notice. The Licensor may end it at once if a Film is shown outside clause 2 or to anyone who is not an Authorised Viewer.

6.3 When the licence ends, the Producer and the End User stop embedding the Films and remove the players from the Modules within 7 days. They may keep ordinary backup copies of the course text for record-keeping. They must not keep a copy of a Film.

7. Licensor's promise

7.1 The Licensor warrants that it owns the copyright in each Film or is authorised by the owner, and by Joe Fox so far as his performance in the Films is concerned, to grant this licence.

7.2 The Films are training aids, not a survey, not a weather forecast, and not advice for a particular anchorage or berth. The Licensor does not warrant that a method in a Film is fit for every boat, every breeze, or every tide. To the extent the Australian Consumer Law allows, the Licensor's liability under this agreement is capped at the fees paid under it in the previous 12 months. The cap does not apply to death, personal injury, or fraud.

8. Producer's and End User's promises

8.1 They will not alter the Films, will not scrape or cache them, and will not present AllSAIL or Juvin8.ai as part of TMG Yachts.

8.2 They are responsible for their own course wording, for who can log in, and for any claim that the Module itself is wrong, incomplete, or unsuitable. They will indemnify the Licensor against loss arising from a breach of clause 2 or 3, or from a claim by an Authorised Viewer that the Module certified them.

8.3 They will not issue a completion certificate in TMG's name.

9. General

9.1 This agreement is the whole agreement about the Films. It is governed by the law of New South Wales. The courts of New South Wales have exclusive jurisdiction.

9.2 A notice may be given by email to the address in Schedule 3, and is taken to arrive on the next business day in Sydney if sent on a business day before 5 pm.

9.3 If a part of this agreement is invalid, the rest continues. A waiver must be in writing.

9.4 GST is added to any amount that is consideration for a taxable supply, and the supplier must provide a tax invoice.

9.5 The agreement may be signed in counterparts, including electronic signature.

Schedule 1 — The Films

Film	Instructor	YouTube
How to Anchor and Set Up a Bridle on a Catamaran	Joe Fox, on a Lagoon 42	https://youtu.be/i_SqmhP4hPU
Catamaran Manoeuvring Tips & Leaving a Marina (Docking Part 1)	Joe Fox, TMG Yachts	https://youtu.be/wagOy9IpjMY

The companion note at <https://www.themultihullgroup.com/inspire-and-learn-how-to-anchor-and-set-up-bridle/> is not part of this licence. It may be linked, not copied.

Schedule 2 — The Modules

1. **TMG's Safe Anchoring – Lagoon 42** (also called High Water Scope): anchoring safety, high-water scope, low-water swing, and the bridle, using Film 1.

2. **Approach:** wind, a stern-to-wind approach, both engines in reverse, and the wheel locked, using Film 2. No other film, and no later TMG upload, is included unless the parties add it in writing.

Schedule 3 — Commercial terms

Item	Agreed term
Fee	A\$ [●] plus GST, payable by the Producer
Term	[●] years from the start date
Licensor email	tmg@tmgyachts.com
Producer email	[●]
End User email	[●]

Signing

Signed for TMG Yachts Pty Ltd

Name: _____
Title: _____
Signature: _____
Date: _____

Signed for the Producer (Juvin8.ai)

Name: _____
Title: _____
Signature: _____
Date: _____

Signed for Cintra Pty Ltd trading as AllSAIL

Name: _____
Title: _____
Signature: _____
Date: _____